

STATEMENT • PANEL • STRUCTURE

policy-recommendation

A legislative recommendation — a stance verdict beside the recommendation, its evidence, and the specific ask to lawmakers.

Adopt a 30-day deadline for breach notification.

Consumers now learn of a breach 78 days late on average — long after the harm compounds.

Faster notice cuts identity-theft losses

States with a 30-day rule saw 22% lower per-victim costs FTC 2025 .

The window is already industry practice

14 of the top 20 data processors notify within 30 days voluntarily IAPP survey .

Enforcement is self-funding

Penalties capitalize the oversight office; no new appropriation LBB fiscal note .

THE ASK

Vote YES on HB 214 § 3 — or sponsor the floor amendment adding the 30-day deadline.

ADOPT

Adopt a 30-day deadline for breach notification.

Consumers now learn of a breach 78 days late on average.

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22% lower per-victim costs where the rule exists FTC 2025 .

Already industry practice

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THE ASK

Vote YES on HB 214 § 3.

Amend SB 88 to require bias audits before deployment.

Post-hoc audits catch discrimination only after applicants are screened out.

Pre-deployment testing is preventive

Later audits cannot un-reject filtered candidates EEOC 2025.

The change is one clause

Move the trigger from § 4(b) to § 3 Leg. counsel.

THE ASK

Adopt the § 4(b) to § 3 move in the committee substitute.

Oppose AB 402's mandated key-escrow provision.

A state-held decryption key is a single point of failure for every resident's data.

It weakens security for everyone

A mandated backdoor is exploitable by any attacker who finds it NIST.

It won't stop determined actors

Open-source encryption stays available outside the state's reach EFF.

THE ASK

Vote NO on AB 402, or strike the § 5 escrow mandate.

DEFER

Defer HR 19 pending an independent accuracy study.

Error rates for the proposed system are unpublished for the populations it would scan.

The evidence base is missing

No demographic accuracy audit exists for this vendor GAO request .

A study is already funded

The oversight office can report within one session fiscal note .

THE ASK

Refer HR 19 to interim study; revisit with the audit in hand.

Amend SB 88 to require bias audits before deployment, not after.

Post-hoc audits catch discrimination only once applicants have already been screened out.

Pre-deployment testing is the only preventive control

Audits after launch cannot un-reject the candidates already filtered [EEOC 2025](#) .

The change is narrow and drafted

It moves one clause from § 4(b) to § 3; no new agency [Leg. counsel memo](#) .

Vendors can meet it today

Three of five major ATS vendors already ship pre-deployment reports [vendor survey](#) .

Delay compounds the exposure

Each hiring cycle under the current text is an un-audited liability [AG advisory](#) .

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When NOT to reach for policy-recommendation.

Weighing two options. If the slide compares alternatives before choosing, use `split-compare` — its right zone is a 2-option grid plus a verdict card. policy-recommendation states one already-chosen position.

More than four reasons. Past four the panel reads as a memo and the ask loses force. Keep the three strongest reasons here and move the full evidence to `list-criteria`.

A recommendation with no ask. Omitting the closing blockquote leaves the reader with a position but no action. Always name the specific legislative move — the bill, the section, the vote.

A topic-label heading. `## Breach Notification` is a topic, not a recommendation. Say the action: `## Adopt a 30-day breach-notification deadline.`

RELATED COMPONENTS

See also.

- `split-compare` — two options weighed before a verdict card
- `decision` — naming a chosen path among options already presented
- `list-criteria` — a flat enumeration of requirements without a stance or an ask
- `regulatory-update` — a period digest of what changed, not a recommendation on one measure